

Court No. - 21

Case :- WRIT - C No. - 5340 of 2022

Petitioner :- Shiv Prasad Maurya

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Arvind Kumar Yadav

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dinesh Pathak, J.

The instant writ petition has been filed for a mandamus directing Executive Engineer, Purvanchal Vidyut Vitaran Nigam Limited, Phoolpur, Azamgarh, to install new electricity meter in place of defective one and ensure uninterrupted supply to the petitioner's house.

Sri Chetan Chatterjee, learned counsel for respondent no. 2, states that disputes of such nature can be raised before respondent no. 2, as per Clause 7.10 of the Electricity Supply Code, 2005. He submitted that in case respondent no. 2 fails to settle the complaint, the petitioner will have remedy of filing complaint before the Consumer Grievance Redressal Forum.

Learned counsel for the petitioner submitted that the petitioner has filed a detailed representation before respondent no. 2 on 1.2.2022.

Accordingly, we direct respondent no. 2 to decide the application/complaint of the petitioner dated 1.2.2022 (annexure-3), by means of a speaking order, within four weeks from the date of receipt of a true attested copy of the instant order, along with photocopy of application dated 1.2.2022. In case respondent no. 2 fails to redress the grievance of the petitioner, he will have right to file complaint before the Consumer Grievance Redressal Forum, as provided under the Electricity Code.

The writ petition stands disposed of accordingly.

(Dinesh Pathak, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.4.2022/Jaideep/-